

Umesh Nath Pandey v. P.V.V.N.L.

High Court of Judicature at Allahabad · Division Bench · 6 July 2016 · Writ - C No. 30278 of 2016 · **Writ dismissed; petitioner relegated to clause 6.1 statutory forum.**

HEADNOTE

A writ seeking correction of consumer name and electricity bill under clause 6.1 of the U.P. Electricity Supply Code, 2005 was not entertained where the petitioner had not paid the dues. The petition was dismissed, with liberty to pursue the statutory forum under the Electricity Act read with clause 6.1.

FACTUAL SUMMARY

Umesh Nath Pandey filed a writ petition against Paschimanchal Vidyut Vitran Nigam Limited and others seeking correction of his name in the licensee's records and correction of the electricity bill, relying on clause 6.1 of the U.P. Electricity Supply Code, 2005. When the Division Bench took up the matter, it emerged that he had not paid the electricity dues in question. He nevertheless maintained that the name and the bill were liable to be corrected under that clause.

HOLDING-UNITS

INTERPLAY · UP-2005::6.1

name-and-bill-correction-writ

HOLDING

A writ seeking correction of consumer name and electricity bill under clause 6.1 of the U.P. Electricity Supply Code, 2005 will not be entertained where the petitioner has not paid the electricity dues; the consumer may pursue the statutory forum under the Electricity Act read with clause 6.1. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ seeking correction of consumer name and electricity bill under clause 6.1 of the U.P. Electricity Supply Code, 2005 was not entertained where the petitioner had not paid the dues. The petition was dismissed, with liberty to pursue the statutory forum under the Electricity Act read with clause 6.1. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S NAME AND ELECTRICITY BILL WERE LIABLE TO BE CORRECTED UNDER CLAUSE 6.1

Left open to the statutory forum under the Electricity Act read with clause 6.1. ¶ 1